

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

include relief for Kestrel Law PLLC and this ruling does not include any relief not properly noticed or requested.

6. S-CV-0055510 RAILEANU, ALIONA v. BMW OF NORTH AMERICA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved his litigation objectives and the parties stipulated to plaintiff's recovery of reasonable attorney's fees.

Defendant does not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 2 to the declaration of Ryan Youabian. The court observes instances where the attorneys and paralegals

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have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 13.5 hours are reasonable for Ryan Youabian, 0 hours are reasonable for “Reception,” 0.6 hours are reasonable for Jennifer Osorio, 0 hours are reasonable for Kelley McPhaul, 0.7 hours are reasonable for Christina Cordova, 0 hours are reasonable for Anthonyg, 0 hours are reasonable for Isaac, and 0.3 hours are reasonable for Markc.

The court must next address whether the requests for \$495 per hour by Ryan Youabian, \$50 for “Reception,” \$125 per hour by Jennifer Osorio, \$125 for Kelley McPhaul, \$125 for Christina Cordova, \$125 for Anthonyg, \$250 for Isaac, and \$250 for Markc are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court notes that neither the moving papers nor declaration filed in support of the moving papers define the above individuals’ title or job duties. Accordingly, the court analyzes the invoice and description column to determine everyone’s job duties and thus the appropriate hourly rate.

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$325 per hour by Ryan Youabian, \$50 for “Reception,” \$125 per hour by Jennifer Osorio, \$125 for Kelley McPhaul, \$125 for Christina Cordova, \$125 for Anthonyg, \$125 for Isaac, and \$125 for Markc are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$4,587.50 for attorney’s fees and costs in the amount of \$573.45 for a total amount of \$5,160.95.

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